

BEFORE THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

OAC Case No. PCE 2007-001
Board Case No. 2007-000978

FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF ANNE
CYPHERS, LPC, LICENSE NO. 1178,

Respondent.

The Colorado Board of Licensed Professional Counselor Examiners ("Board"), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge ("ALJ") in accordance with the provisions of the Mental Health Act and the Administrative Procedure Act, and having reviewed the ALJ's Initial Decision, hereby enters the following findings and order:

1. Anne Cyphers ("Respondent") was served with a Notice of Duty to Answer, Notice to Set, Notice of Hearing, Notice of Charges, and Option to Engage in Alternative Dispute Resolution on February 20, 2007, at the licensee's last known address on file with the Board, 3105 Pine Cone Ct., Grand Junction, CO 81504.
2. The Board's Motion for Entry of Default was mailed to Respondent by first class mail to the address stated above on March 19, 2007.
3. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the address stated above on April 10, 2007. The Entry of Default was forwarded on April 30, 2007 to Respondent at a forwarding address (3181 Summit Way, Grand Junction, CO 81504-5815) provided to the Office of Administrative Courts by the postal authorities.
4. On or about May 9, 2007, the Respondent sent a request to set aside the Entry of Default (which contained no address) by facsimile transmission, but did not file this request with the Court. Counsel for the Board forwarded a copy of the request to OAC on May 10, 2007. On May 17, 2007, OAC received the Board's Response to Motion to Set Aside Default. Based upon a review of the request and the Board's objection thereto, the ALJ found that the Respondent failed to demonstrate good cause to set aside the Entry of Default.
5. The Court rendered its Initial Decision on or about May 31, 2007, and transmitted same to the Board.

6. The Initial Decision was served on the Respondent (at 3105 Pine Cone Ct.) and the Board's counsel on June 8, 2007.

7. On or about September 13, counsel for the Board discovered that on or about May 15, 2007, Respondent changed her address of record with the Board to 3181 Summit Way, Grand Junction, CO 81504.

8. The Initial Decision was served on the Respondent at 3181 Summit Way and at 3105 Pine Cone Ct. on September 17, 2007.

9. Exceptions to the Initial Decision were due on or before October 17, 2007.

10. Neither party filed Exceptions.

11. Pursuant to §24-4-105 (15), C.R.S., the Initial Decision of the ALJ, which is incorporated herein by reference, became the Final Order of the Board.

IT IS THEREFORE ORDERED by the Board, based upon the above findings, that the license to practice professional counseling of Anne Cyphers is summarily suspended until such time as she complies with the Board Order.

DATED this 6th day of November, 2007.

BY THE COLORADO
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

Gayle D. Fidler

GAYLE D. FIDLER
Program Director